GENERAL TERMS AND CONDITIONS

These General Terms and Conditions, sets out the terms and conditions on which Staydia Limited, a company incorporated and registered in Ireland with company number 762203 whose registered office is at No. 1 Grant's Row, Lower Mount Street, Dublin 2, Ireland ("**Staydia**") will provide the Services to the Partner.

1. DEFINITIONS AND INTERPRETATION

The following definitions and rules of interpretation apply in this Agreement.

1.1 Definitions

"**Agreement**" means the Order Form, these General Terms and Conditions and the Schedules.

"**Applicable Laws**" all applicable laws, statutes, regulations from time to time in force.

"**Applicable Data Protection Laws**" means any applicable laws, statute or regulations relating to the processing of Personal Data under the Agreement, including but not limited to the GDPR and the UK GDPR.

"Associated Organisation" means any club, sub-organisation, affiliate and/or any other organisation within the governance, control or jurisdiction of the Partner, whose details will be notified by the Partner to Staydia in accordance with clause 4.

"Broadcast / Broadcasting" means the recording, viewing, transmission, relaying or distribution by electronic communications network of communications, streaming (both live and on-demand) and broadcasting of the Content.

"Change Order" has the meaning given in clause 16.

"Club Members" means the individual members of the Partner (itself being a club) whose club membership includes the Staydia Club Membership Plan and a "**Club Member"** means any one of them.

"Club Member Fees" means the general membership fees payable by a Club Member to join and maintain its membership of the Partner (itself being a club).

"Content" means the communications, sounds, signs, images, signals, visual and/or audio-visual content recorded at Events using the Staydia Products (including any commentary and/or on-screen display information uploaded by the Partner), which is Broadcast on the Platform through live streaming and/or on-demand streaming.

"Effective Date" has the meaning given in the Order Form.

"Event" means the events organised by the Partner, which Staydia has agreed to stream on the Platform in line with the Event Schedule requirements and timelines further detailed in the Order Form.

"Event Schedule" means the schedule of Events to be provided by the Partner to Staydia, in accordance with the Event Schedule requirements and timelines provided at Schedule 2.

"**GDPR**" means the General Data Protection Regulation (*(EU) 2016/679*), as it has effect in EU law.

“Initial Term” has the meaning given in clause 2.1.

"**Intellectual Property Rights**" patents, utility models, rights to inventions, copyright and neighbouring and related rights, moral rights, trade marks and service marks, business names and domain names, rights in get-up and trade dress, goodwill and the right to sue for passing off or unfair competition, rights in designs, rights in computer Staydia Products, database rights, rights to use, and protect the confidentiality of, confidential information (including know-how and trade secrets) and all other intellectual property rights, in each case whether registered or unregistered and including all applications and rights to apply for and be granted, renewals or extensions of, and rights to claim priority from, such rights and all similar or equivalent rights or forms of protection which subsist or will subsist now or in the future in any part of the world.

“Net Subscription Revenue” means the total revenue generated by non-discounted Subscription Fees paid by Viewers to Staydia, net of all applicable taxes and after discounting or accounting for rebates, cancellations, refunds, and charges (including, without limitation, payment processor charges) and related operational costs and expenses, and which (for the avoidance of doubt) shall be calculated per Viewer subscription attributed to the Partner, and not per Event view.

“Order Form” means the Order Form outlining specific terms of the engagement between the Parties, and executed by the Parties on or prior to the Effective Date.

“Partner” the Partner is listed in the Order Form (and any Associated Organisation, where applicable). The Partner may itself be a club.

"**Partner Materials**" all documents, information, items and materials in any form, whether owned by the Partner or a third party, which are provided by the Partner to Staydia in connection with the Services.

"**Personal Data**" has the meaning given in Schedule 3.

“Platform” means the e-commerce platform operated by Staydia to facilitate Viewer registration, payment processing and Partner service to support the Viewer subscription service and the Broadcasting of Events, as described in the Order Form.

“Premises” means the premises where the Staydia Products are installed and where the Events take place.

“Renewal Term” has the meaning given in clause 2.2.

“Schedules” means Schedule 1, Schedule 2 and Schedule 3.

“Services” means the following services provided by Staydia to the Partner: (i) the supply and installation of the Staydia Products; and (ii) the Broadcasting of the Content on the Platform.

“Staydia Club Membership Plan” means the additional club membership features offered by the Partner (itself being a club) to its participating Club Members which enable them to access and use the Platform and view certain Content.

“Staydia Club Membership Plan Fees” means the proportion of the Club Member Fees which are attributable to the Staydia Club Membership Plan and payable by the Club Member to the Partner (itself a club).

“Staydia Hardware” has the meaning given in the Order Form.

"Staydia Products" means the Staydia Hardware and the Staydia Software.

"Subscription Fees" means the subscription fees payable by the Viewers to Staydia through the Platform, not including the Staydia Club Membership Plan Fees.

"Staydia Software" has the meaning given in the Order Form.

"Term" means the Initial Term and any Renewal Term.

"Third-Party Service Providers" means all third-party service providers engaged by Staydia to assist with the supply of the Services, including any third-party engaged to install the Staydia Products at the Premises.

"UK GDPR" has the meaning given to it in section 3(10) (as supplemented by section 205(4)) of the UK Data Protection Act 2018.

"Viewer" means the users who subscribe to the Platform to view the Content.

1.2 Clause, Schedule and paragraph headings shall not affect the interpretation of this Agreement.

1.3 The Order Form and Schedules form part of this Agreement and shall have effect as if set out in full in the body of this Agreement. Any reference to this Agreement includes the Schedules and the Order Form.

1.4 A reference to a **company** shall include any company, corporation or other body corporate, wherever and however incorporated or established.

1.5 A reference to **writing** or **written** includes email.

2. TERM AND TERMINATION

2.1 **Initial Term.** This Agreement shall commence on the Effective Date and shall continue, unless terminated earlier in accordance with clause 2.3 (Termination), for a period of ten (10) years from the date of the first Broadcast of the Content on the Platform (the "**Initial Term**").

2.2 **Renewal.**

2.2.1 This Agreement shall automatically renew and continue for consecutive periods of five (5) years (each, a "**Renewal Term**") unless (i) terminated earlier in accordance with clause 2.3 (Termination) or (ii) a Party notifies the other Party in writing of its intention not to renew the Agreement at least six (6) months prior to the expiry of the Initial Term or the relevant Renewal Term.

2.2.2 Subject to clause 2.2.1(ii), the Parties shall as soon as reasonably practicable prior to the expiry of the Initial Term or the relevant Renewal Term enter good faith negotiations to agree Net Subscription Revenue sharing arrangements for next Renewal Term.

2.3 **Termination.**

2.3.1 Without affecting any other right or remedy available to them, the Parties may mutually agree, in writing, to terminate the Agreement with immediate effect.

2.3.2 Without affecting any other right or remedy available to it, Staydia may terminate the Agreement by giving 30 days written notice to the Partner, where Staydia is of the view that the Partner has continuously failed to comply with its obligations to:

(a) publicise and promote the Platform, as provided under clause 7.1.1;

(b) provide the Event Schedule in line with the Event Schedule requirements, as provided under clause 7.1.9; and/or

(c) provide the Staydia Products with continuous access to functioning electricity and WiFi, as provided under clause 7.1.10.

2.3.2 Without affecting any other right or remedy available to it, either Party may terminate the Agreement with immediate effect by giving written notice to the other Party if:

(a) the other Party commits a material breach of its obligations under the Agreement and (if such breach is remediable) fails to remedy that breach within 30 days after receipt of notice in writing to do so;

(b) the other Party takes any step or action in connection with its entering administration, provisional liquidation or any composition or arrangement with its creditors (other than in relation to a solvent restructuring), being wound up (whether voluntarily or by order of the court, unless for the purpose of a solvent restructuring), having a receiver appointed to any of its assets or ceasing to carry on business or, if the step or action is taken in another jurisdiction, in connection with any analogous procedure in the relevant jurisdiction;

(c) the other Party suspends, or threatens to suspend, or ceases or threatens to cease to carry on all or a substantial part of its business; or

(d) the other Party's financial position deteriorates to such an extent that in the terminating Party's opinion the other Party's capability to adequately fulfil its obligations under the Agreement has been placed in jeopardy.

2.4 **Consequences of Termination.** On termination or expiry of this Agreement:

2.3.3 Staydia shall, within a reasonable time, arrange the removal and collection of all Staydia Products from the Premises. For the duration of the Agreement and up until such time as the Staydia Products have been repossessed by or on behalf of Staydia, the Partner shall be solely responsible for their safe keeping; and

2.3.4 Staydia shall on request return any of the Partner Materials not used up in the provision of the Services; and

2.3.5 unless requested otherwise in writing, and subject to clause 3.4, Staydia shall have the perpetual royalty-free right to retain all Content made available on the Platform prior to the termination or expiration of the Agreement.

3. LICENCES

3.1 **Licence Grant to Partner.** Subject to the terms of this Agreement, Staydia hereby grants the Partner a non-exclusive, non-transferrable, limited licence to use the Staydia Products at the Premises for the purposes only of:

3.1.1 Broadcasting the Content to the Platform, subject to the terms of this Agreement;

3.1.2 downloading Content to the Partner's internal game-film analysis platform, for use by the Partner's coaches and teams, provided that this Content is not made generally available by the Partner to Viewers or the general public; and

3.1.3 offering the Staydia Club Membership Plan to its Club Members as a feature of the Partner's general club membership offering.

3.2 **Licence Grant to Staydia.** The Partner hereby grants Staydia an exclusive, worldwide, fully paid-up, royalty-free, sub-licensable, transferrable and irrevocable licence to:

3.2.1 Broadcast, reproduce, alter and distribute the Content;

3.2.2 use, copy, and modify the Partner Materials for the purposes of Broadcasting the Content on the Platform;

subject to the terms of this Agreement.

3.3 **Sub-Licensing Rights.** The Partner hereby agrees that Staydia is authorised to:

3.3.1 sub-licence the Content, in any part or in whole, to other Broadcasting platforms, including but not limited to television networks, radio networks, or other online networks;

3.3.2 sub-licence and make available the Content to any Viewer (or any participating Club Member) for their personal use, including the right to purchase and download archived Content, as and when it becomes available for download;

on the basis that (i) the rights and obligations imposed upon Staydia in respect of such Content under the terms of this Agreement, shall be imposed upon any sub-licensee engaged, and (ii) the Partner (acting reasonably) may request in writing from time to time that these rights are limited for certain Content, if required.

3.4 **Additional Rights.** The Partner acknowledges and agrees that:

3.4.1 all previously Broadcast and other Content to the extent recorded, stored and/or archived on the Platform, may:

(a) remain on the Platform and that Staydia may, at its discretion, continue to use, store and to, directly or indirectly, Broadcast or otherwise make that Content available to any Viewer on the Platform; and

(b) be modified and anonymised and used by Staydia alone or in collaboration with any third party for the purposes of research, development and data analysis.

3.4.2 all rights and licences granted to the Staydia pursuant to this clause 3 shall survive the expiration or termination of this Agreement continue on a fully-paid up and royalty-free basis to the extent necessary to give Staydia the full benefit of this clause 3.4;

except and to the extent the Partner makes a request in writing to Staydia within thirty (30) days from the date of termination or expiration of this Agreement that the Content or any particular part of it be taken down from the Platform.

4. ASSOCIATED ORGANISATIONS

4.1 On or prior to the Effective Date, the Partner shall, as applicable, provide Staydia with a list of the Associated Organisations, including the following information for each Associated Organisation:

4.1.1 Name of Associated Organisation;

4.1.2 Location of Premises;

4.1.3 Details of their proposed representative; and

4.1.4 Details of any variance to the Services to be provided to any Associated Organisation, in comparison to the agreed Services to be provided to the Partner (which is subject to Staydia's approval).

4.2 The Parties agree that where any Associated Organisation is notified to Staydia in line with the terms of clause 4.1, this Associated Organisation will be considered an affiliate of the Partner and will become bound by the terms of this Agreement as if it were a party to this Agreement. The Partner shall procure that any right and/or obligations imposed upon the Partner under this Agreement will automatically be imposed upon each of the Associated Organisations.

4.3 The Partner hereby warrants and represents that:

4.3.1 each such Associated Organisation has been provided with a copy of this Agreement and has confirmed its acceptance and approval of its terms;

4.3.2 each such acceptance and approval has been decided on by the Associated Organisation's responsible committee having the necessary authority to take such decisions for and on behalf of the Associated Organisation;

4.3.3 the Partner has the authority to bind each of the Associated Organisations and to execute this Agreement on their behalf. Where the Partner does not have the authority to bind an Associated Organisation, the Parties agree that such Associated Organisation will enter into a separate Agreement with Staydia.

4.4 The Partner shall be responsible at all times for the acts and omissions of its Associated Organisations in connection with the performance of this Agreement and/or the use of the Services.

4.5 The Parties acknowledge that the Partner itself may be an Associated Organisation, i.e., a club. In circumstances where the Partner is an Associated Organisation, i.e., a club, all rights and obligations conveyed or imposed on an Associated Organisation shall apply mutatis mutandis to the Partner and this Agreement shall be construed accordingly.

5. DELIVERY, ACCEPTANCE AND INSTALLATION

5.1 Staydia shall use all reasonable endeavours to deliver to and install the Staydia Products at the Premises on the Effective Date.

5.2 Within 5 days of Effective Date, the Partner shall record Content on the Staydia Products ("**Test Content"**) to test the operation of the Staydia Products ("**Acceptance Testing**").

5.3 If Staydia can show the Partner that the Test Content is not suitable for Acceptance Testing, the Partner shall make such amendments to the Test Content as Staydia may reasonably request and provide the amended versions to Staydia within 5 days of the request.

5.4 Within 5 days of receipt of suitable Test Content, Staydia shall carry out Acceptance Testing. If Staydia determines that the initial Acceptance Testing fails, Staydia shall, within 7 days of the Acceptance Testing and at its reasonable cost, correct the errors so disclosed and repeat the Acceptance Testing.

5.5 If the immediately subsequent Acceptance Testing materially fails, the Partner may discontinue this Agreement by written notice, or require Staydia to repeat the actions described in clause 5.4 and clause 5.5.

5.6 The Partner shall be deemed to have accepted the Staydia Products if:

5.6.1 the Acceptance Testing is successful;

5.6.2 the Partner fails to provide the Test Content within either of the time limits set out in this clause 5 (as to which time shall be of the essence); or

5.6.3 the Partner commences operational use of the Staydia Products.

6. STAYDIA'S RESPONSIBILITIES

6.1 Staydia shall:

6.1.1 Broadcast the Events at the Partner's Premises in line with the Partner's agreed livestream and on-demand Event Schedule;

6.1.2 use reasonable endeavours to supply the Services in accordance with this Agreement in all material respects;

6.1.3 appoint a representative for the Services, such person as identified in the Order Form. Staydia may replace that person from time to time where reasonably necessary in the interests of Staydia's business;

6.1.4 provide to the Partner adequate initial training and support sessions, in line with the agreed training obligations set out in the Order Form;

6.1.5 ensure that the Partner is provided with appropriate support services throughout the duration of the Term, and will promptly respond to any request for support submitted by the Partner;

6.1.6 arrange any routine and reasonable maintenance of the Staydia Hardware at the Premises (in accordance with any instructions as may be provided from time to time by Staydia);

6.1.7 use reasonable endeavours to observe all health and safety and security requirements that apply at the Partner's Premises and that have been communicated to it, provided that it shall not be liable under this Agreement if, as a result of such observation, it is in breach of any of its obligations under this Agreement.

7. PARTNER'S OBLIGATIONS

7.1 The Partner shall:

7.1.1 shall make all commercially reasonable efforts to advertise, promote and publicise the Platform and Event Schedule to potential Viewers (and participating Club Members) including on the Partner's website(s) (if applicable) and social media platforms;

7.1.2 co-operate with Staydia in all matters relating to the Services;

7.1.3 provide Staydia with the details of all Associated Organisations, in accordance with clause 4, as applicable.

7.1.4 appoint a representative for the Services, such person as identified in the Order Form. That person shall be present for the installation of the Staydia Products at the Premises, and shall be granted backend access to the Platform;

7.1.5 where applicable, provide for Staydia, its agents, subcontractors, consultants and employees, in a timely manner and at no charge, access to the Partner's Premises as reasonably required by Staydia;

7.1.6 provide to Staydia in a timely manner all documents, information, items and materials in any form as required by Staydia in connection with the Services (including, but not limited to, up-to-date Event Schedule(s) in a format acceptable to Staydia) and ensure that they are accurate and complete in all material respects;

7.1.7 inform Staydia of all health and safety and security requirements that apply at the Partner's premises;

7.1.8 obtain and maintain all necessary licences and consents and comply with all relevant legislation as required to enable Staydia to provide the Services, including in relation to the installation of the Staydia Products and the use of all Partner Materials, in all cases before the date on which the Services are to start;

7.1.9 provide Staydia with the Event Schedule in line with the Event Schedule requirements and timelines provided at Schedule 2;

7.1.10 provide the Staydia Products with continuous access to functioning electricity and WiFi;

7.1.11 notify Staydia of any changes to the Event Schedule within 2 days of becoming aware of such changes, and the Partner shall take full responsibility for updating the Event Schedule via the backend of the Platform or otherwise, including for any last minute scheduling changes;

7.1.12 be solely responsible for the Events and the Content that is Broadcast on the Platform, including securing any and all releases, consents, waiver and other necessary rights from any third parties, complying at all times with Applicable Laws;

7.1.13 ensure that all Content shall be suitable for a general viewing audience (unless restricted viewing is otherwise agreed between the parties) and that the Content will not contain any defamatory matter nor breach any contract or law nor breach any duty of confidentiality, infringe any copyright or data protection rights, nor constitute contempt of court or obscenity;

7.1.14 not permit any third party to stream or Broadcast any Events, where that third Party's services would be deemed competitive with Staydia's services;

7.1.15 keep and maintain the Staydia Products, to the extent they are in the possession and/or control of the Partner, in good condition and shall not dispose of or use the Staydia Products other than in accordance with Staydia's written instructions or authorisation;

7.1.16 reimburse Staydia for any damage, harm, destruction or vandalization (other than any reasonable wear and tear) of the Staydia Products that occurs at the Premises, subject to the terms of clause 14.4; and

7.1.17 be solely responsible for the collection of Club Member Fees from its Club Members (including the collection of Staydia Club Membership Plan Fees from its participated Club Members).

8. ADVERTISING

8.1 Staydia may (i) develop their own advertising content, and/or (ii) commission advertising content from third parties, to be Broadcast with the Content, and any revenue derived from that advertising shall be for the exclusive benefit and gain of Staydia.

8.2 The Partner may commission advertising content from third parties to be Broadcast with the Content through banner advertisements, and any revenue derived by the banner advertising shall be for the exclusive benefit and gain of the Partner. The Partner shall ensure that any advertising materials produced and provided to Staydia do not violate any Applicable Laws or court order and/or infringe or misappropriate any proprietary or other Intellectual Property Rights.

9. USER SUBSCRIPTIONS AND CLUB MEMBERS

9.1 Viewers shall subscribe for and use the Platform, upon acceptance of the Staydia Platform Terms of Use, and upon payment of the required Subscription Fees.

9.2 Staydia retains the right to modify subscription plans and pricings for the Viewers.

9.3 Club Members may access and use of the Platform, and view certain Content, under the Staydia Club Membership Plan upon acceptance of the Staydia Platform Terms of Use and subject to all requisite Club Member Fees (including Staydia Club Membership Plan Fees) having been paid as and when they fall due.

10. REVENUE SHARING; STAYDIA CLUB MEMBERSHIP PLAN FEES

10.1 Revenue Sharing (User Subscriptions/Viewers)

10.1.1 The Net Subscription Revenue generated from the non-discounted Platform Subscription Fees paid by the Viewers and attributed to the Partner shall be shared with the Partner in accordance with the terms of Schedule 1, Part A.

10.1.2 Staydia shall manage the collection of all Subscription Fees received through the Platform through the engagement of a Third-Party Service Provider.

10.1.3 Within 30 days following the end of each calendar year during the Term, Staydia shall provide the Partner with a report on the Net Subscription Revenue generated in the previous calendar year. Subject to clause 10.1.4, Staydia shall within 20 days of the issuance of this report pay the amount due (if any) to Partner in accordance with the terms of Schedule 1, Part A.

10.1.4 In the event of a dispute between the Parties in relation to the Net Subscription Revenue payable to the Partner in any given calendar year during the Term, and to the extent the dispute cannot be resolved between the Parties, the Partner may at its own cost and on giving written notice to Staydia within 20 days from the date of receipt of the report of Net Subscription Revenue for the relevant calendar year, arrange for an audit (on reasonable notice and within normal working hours) of Staydia's records only to the extent necessary to verify the Net Subscription Revenue generated and payable to the Partner for that calendar year. The Partner and any auditor appointed by the Partner for such purposes shall be required to treat all such records confidentially. In the event the auditor's final written report reasonably determines that there has been a valid discrepancy in the calculation of the Net Subscription Revenue payable to the Partner, Staydia shall pay to the Partner without undue delay any agreed discrepancy in the Net Subscription Revenue for that calendar year.

10.2 Staydia Club Membership Plan Fees (Club Members)

10.2.1 The Partner is responsible for the collection of all Club Member Fees from its Club Members as and when they fall due, including the Staydia Club Membership Plan Fees.

10.2.2 Where applicable, the Partner shall guarantee and maintain on an annual basis the minimum number of active Club Members specified in the Order Form of this Agreement, enrolled in the Staydia Club Membership Plan, or such greater number of active and enrolled Club Members as may be agreed in writing between the Parties in respect of any subsequent year of the Term.

10.2.3 The Staydia Club Membership Plan Fees collected by the Partner from its Club Members shall be shared by the Partner with Staydia in accordance with the terms of Schedule 1, Part B.

10.2.4 Any payment of Staydia's proportion of Staydia Club Membership Plan Fees which is paid after the 10th day of the month, shall be subject to a late payment fee of 1.5% per month, compounded monthly.

10.2.5 The Partner shall provide Staydia on an annual or monthly basis (depending on billing preference) with a report of all participating Club Members, by name, email and current team and containing such other information as Staydia may reasonably require to activate their respective access to the Staydia Club Membership Plan, including the Platform and/or the relevant Content, and/or to verify the proportion of Staydia Club Membership Plan Fees payable to Staydia under this Agreement.

10.2.6 In the event the number of enrolled Club Members falls below or exceeds the minimum guaranteed number of enrolled Club Members required by clause 10.2.2 of this Agreement, Staydia reserves the right to adjust its prices on giving reasonable advance notice to the Partner. Staydia will also adjust its prices on an annual basis to account for Consumer Price Index (CPI), as per Schedule 1, Part B.

11. PROPRIETARY AND INTELLECTUAL PROPERTY RIGHTS

11.1 Staydia shall retain ownership of and all title in and to the Staydia Hardware.

11.2 Staydia shall retain ownership of all Intellectual Property Rights in the Staydia Products, subject to the licence provided at clause 3.1.

11.3 The Partner:

11.3.1 shall retain ownership of all Intellectual Property Rights in the Content and the Partner Materials, subject to the licence provided for at clause 3.2.

11.3.2 warrants that the receipt and use of the Partner Materials in the performance of this Agreement by Staydia, its agents, subcontractors or consultants shall not infringe the rights, including any Intellectual Property Rights, of any third party; and

11.3.3 shall indemnify Staydia in full against all liabilities, costs, expenses, damages and losses (including any direct, indirect or consequential losses, loss of profit, loss of reputation and all interest, penalties and legal costs (calculated on a full indemnity basis) and all other reasonable professional costs and expenses) suffered or incurred by Staydia arising out of or in connection with any claim brought against Staydia, its agents, subcontractors or consultants for actual or alleged infringement of a third party's Intellectual Property Rights arising out of, or in connection with, the receipt or use in the performance of this Agreement of the Partner Materials.

12. CONTENT INDEMNITY

12.1 The Partner shall indemnify Staydia in full in respect of any action, claim, proceedings, demands, loss, damage or injury and any costs or reasonable legal expenses suffered or incurred by Staydia, including settlement on the advice of counsel, as a result, directly or indirectly, of any offensive and/or defamatory material, any breach of privacy, misuse of private information or Personal Data, contract, duty of confidence arising from the Broadcast of the Content and/or the use of any Partner Materials.

13. DATA PROTECTION

13.1 Both Parties will comply with all applicable requirements of the Applicable Data Protection Laws, and with the obligations imposed upon them within the data processing addendum provided at Schedule 3, as applicable.

14. LIMITATION OF LIABILITY

14.1 References to liability in this clause 14 include every kind of liability arising under or in connection with this Agreement including but not limited to liability in contract, tort (including negligence), misrepresentation, restitution or otherwise.

14.2 Nothing in this Agreement limits any liability which cannot legally be limited, including but not limited to liability for:

14.2.1 death or personal injury caused by negligence;
14.2.2 fraud or fraudulent misrepresentation; and
14.2.3 breach of the terms implied by section 26 of the Sale of Goods and Supply of Services Act 1980 (title and quiet possession).

14.3 Subject to the limitations set out in this clause 14, Staydia's total liability to the Partner shall not exceed €3,000 (three thousand euro).

14.4 Subject to the limitations set out in this clause 14, the Partner's total liability to Staydia in respect of any claim arising out of or in connection with this Agreement shall not exceed the higher of (i) the total Net Subscription Revenue relating to or attributable to this Agreement which is paid or payable to Staydia in the twelve months immediately preceding the event giving rise to the claim or (ii) the total share of Net Subscription Revenue which is paid or payable to the Partner in the twelve months immediately preceding the event giving rise to the claim. The limitation of liability in this clause 14.4 shall not apply in respect of any damage to or theft of the Staydia Hardware (including, but not limited to, any camera). To the extent any of the Staydia Hardware (including, but not limited to, any camera) is proven to have been damaged at the Premises or stolen, it is intended, unless otherwise agreed between the Parties, that the cost of replacing this damaged or stolen Staydia Hardware would be recouped in full by Staydia out of the Net Subscription Revenue, on the basis that such replacement cost would be netted out and deducted from the Net Subscription Revenue prior to calculating any Net Subscription Revenue due to be shared with and paid to the Partner in a given year.

14.5 In no event shall Staydia be held liable to the Partner for any of the following losses:

14.5.1 loss of profits;
14.5.2 loss of sales or business;
14.5.3 loss of agreements or contracts;
14.5.4 loss of anticipated savings;
14.5.5 loss of use or corruption of Staydia Products, data or information;
14.5.6 loss of or damage to goodwill; and
14.5.7 indirect or consequential loss.

15. DISCLAIMERS

15.1 The Parties acknowledge that the Agreement is a service agreement, and that Staydia does not warrant or represent that:

15.1.1 the operation of the Staydia Products will be uninterrupted or error free;

15.1.2 the functions or performance of the Staydia Products will meet with the Partner's requirements.

15.2 Staydia disclaims all representations or warranties, express or implied, made to the Partner or any other person, including without limitation, any warranties regarding quality, suitability, merchantability, fitness for a particular purpose or otherwise of any service or any goods provided incidental to the Services.

15.3 Staydia disclaims any and all liability, including express or implied representations or warranties made to the Partner, in respect of all Third-Party Service Providers.

16. CHANGE CONTROL

16.1 Staydia may make changes to the scope or execution of the Services, but no proposed changes shall come into effect until a Change Order has been issued to the Partner. A Change Order shall be a document setting out the proposed changes, the proposed implementation date, and the effect that those changes will have on the Services and any of the terms of this Agreement.

17. GENERAL

17.1 **Force majeure.** Neither Party shall be in breach of the Agreement nor liable for delay in performing, or failure to perform, any of its obligations under the Agreement if such delay or failure result from events, circumstances or causes beyond its reasonable control. If the period of delay or non-performance continues for 4 weeks, the Party not affected may terminate the Agreement by giving 14 days' written notice to the affected Party.

17.2 **Confidentiality.**

a) Each Party undertakes that it shall not at any time during the Agreement disclose to any person any confidential information concerning the business, affairs, products, Partners, clients or suppliers of the other Party except as permitted by clause 17.2(b).

b) Each Party may disclose the other Party's confidential information: (i) to its employees, officers, representatives or advisers who need to know such information for the purposes of exercising the Party's rights or carrying out its obligations under or in connection with the Agreement; and (ii) as may be required by law, a court of competent jurisdiction or any governmental or regulatory authority.

c) No Party shall use any other Party's confidential information for any purpose other than to exercise its rights and perform its obligations under or in connection with this Agreement.

17.3 **Entire agreement.** The Agreement constitutes the entire Agreement between the Parties and supersedes and extinguishes all previous agreements, promises, assurances, warranties, representations and understandings between them, whether written or oral, relating to its subject matter.

17.4 **Variation.** No variation of the Agreement shall be effective unless it is in writing and signed by the Parties (or their authorised representatives).

17.5 **Waiver.** A waiver of any right or remedy under the Agreement or by law is only effective if given in writing and shall not be deemed a waiver of any subsequent right or remedy. A failure or delay by a Party to exercise any right or remedy provided under the Agreement or by law shall not constitute a waiver of that or any other right or remedy, nor shall it prevent or restrict any further exercise of that or any other right or remedy. No single or partial exercise of any right or remedy provided under the Agreement or by law shall prevent or restrict the further exercise of that or any other right or remedy.

17.6 **Severance.** If any provision or part-provision of the Agreement is or becomes invalid, illegal or unenforceable, it shall be deemed modified to the minimum extent necessary to make it valid, legal and enforceable. If such modification is not possible, the relevant provision or part-provision shall be deemed deleted. Any modification to or deletion of a provision or part-provision under this clause 17.6 shall not affect the validity and enforceability of the rest of the Agreement.

17.7 **Notices.**

a) Any notice or other communication given to a Party under or in connection with the Agreement shall be in writing, addressed to that Party at its registered office or such other address as that Party may have specified to the other Party in writing in accordance with this clause, and shall be delivered personally, or sent by registered post or other next working day delivery service, commercial courier, email.

b) A notice or other communication shall be deemed to have been received: if delivered by hand, when left at the address referred in clause 17.7(a), if sent by registered post or other next working day delivery service, at 9.00am on the first business day after posting; if delivered by commercial courier, on the date and at the time that the courier's delivery receipt is signed; or, if sent by email, one day after transmission.

c) The provisions of this clause shall not apply to the service of any proceedings or other documents in any legal action.

17.8 **Assignment.** Staydia may at any time assign, sub-contract, mortgage, charge, declare a trust over or deal in any other manner with any or all of its rights under this Agreement.

17.9 **Counterparts.** This Agreement may be executed in any number of counterparts, each of which shall constitute a duplicate original, but all the counterparts shall together constitute the one Agreement. Transmission of an executed counterpart of this Agreement (but for the avoidance of doubt not just a signature page) by email (in PDF, JPEG or other agreed format) shall take effect as the transmission of an executed “wet-ink” counterpart of this Agreement. If this method of transmission is adopted, without prejudice to the validity of the Agreement thus made, each part shall on request provide the other with the “wet-ink” hard copy original of their counterpart.

17.10 **Governing Law and Jurisdiction.** This Agreement and any dispute or claim (including non-contractual disputes or claims) arising out of or in connection with it or its subject matter or formation shall be governed by, and construed in accordance with, the law of Ireland. Each Party irrevocably agrees that the courts of Ireland shall have exclusive jurisdiction to settle any dispute or claim (including non-contractual disputes or claims) arising out of or in connection with this Agreement or its subject matter or formation.

SCHEDULE 1
Revenue Sharing

REVENUE SHARING ARRANGEMENT

Part A: Partner's Percentage (%) (Net Subscription Revenue)

Agreement Year	First €3,000 of Net Subscription Revenue	Net Subscription Revenue above €3,000
0-10	0%	50%

For the avoidance of doubt, Staydia Club Membership Plan Fees or any part of them shall not be included in or form part of the above. Staydia Club Membership Plan Fees are treated separately and shall be calculated and distributed in accordance with Part B of this Schedule 1.

Part B: Staydia Club Membership Plan Fees

Staydia Club Membership Plan Fees:	Each participating Club Member shall be charged an initial Staydia Club Membership Plan Fee of £36 per year by the Partner (£3 per month for 12 months per year), which can be included in the Club Member Fees (i.e., in the Partner's regular dues or membership charges). Committing to the enrolment of a specific number of Club Members may result in a reduced Staydia Club Membership Plan Fee. Every three (3) years, Staydia will increase the Staydia Club Membership Plan Fee by 3%, which is below the standard annual increase of the Consumer Price Index (CPI) in the EU & UK. Staydia reserves the right to further adjust this increase in the event of any significant change to the CPI. Prices are inclusive of VAT. Organizations that are VAT-registered may be able to reclaim this VAT subject to their own VAT status and activities.
Sharing of Staydia Club Membership Plan Fees as between the Partner and Staydia:	• Staydia shall receive a minimum of £36 per participating Club Member, per year, unless a different fee is agreed upon based on enrolment (please see optional payment terms below). • Partner shall retain any amount over the Staydia Club Membership Plan Fee charged per participating Club Member, per year (if applicable and at Partner's discretion).

Payment Terms:	Partner shall pay Staydia through any of the following options: **<u>Option 1</u>** • Remit a single payment of a minimum of £36 per Club Member, per calendar year. • Payment is to be made no later than the 10th calendar day in the first month of each new season, if not otherwise agreed between the parties. **<u>Option 2</u>** • Remit a minimum of £3 per enrolled Club Member, per month, for 12 months of each year during the Term. • Payment is to be made no later than the 10th calendar day of each month. **<u>Option 3</u>** • Payments may also be made quarterly, where agreed upon by both parties. • Payment is to be made no later than the 10th calendar day in the first month of each new quarter.

SCHEDULE 2

Event Schedule Requirements

- Staydia will record and stream all Partner Events taking place at the Premises. For clarification, this includes any and all matches, across all levels and genders, played at the Partner's Premises including but not limited to league matches, cup fixtures, and friendlies.

- Partner will provide Staydia with accurate match schedules, in the requested CSV format, as soon as they become available.

- Partner will make appropriate edits to any changes to the Event Schedule in the Platform.

STAYDIA

SCHEDULE 3

Data Processing Addendum

THIS DATA PROCESSING ADDENDUM including its appendix **(**the "**Addendum**") is incorporated into the Main Agreement (as defined below) between STAYDIA LIMTIED, incorporated and registered in Ireland with company number 762203 and having its registered office at No. 1 Grant's Row, Lower Mount Street, Dublin 2, Ireland (**"Staydia"**) and the Partner.

This Addendum sets out the terms, requirements and conditions on which Staydia will process Partner Personal Data when providing services under the Main Agreement with effect from the Effective Date. This Addendum contains the mandatory clauses required by Article 28(3) of the General Data Protection Regulation (*(EU) 2016/679*) for contracts between controllers and processors.

GENERAL TERMS:

1. <u>DEFINITIONS AND INTERPRETATION</u>

1.1 Capitalized terms used but not defined in this Addendum have the meaning given to them in the Main Agreement. In addition, the following definitions and rules of interpretation apply in this Addendum.

"Addendum"	has the meaning given in the recitals.
"Applicable Data Protection Legislation"	means all applicable privacy and data protection laws, including, but not limited to, the Irish Data Protection Acts 1988-2018, the General Data Protection Regulation (*(EU) 2016/679*) ("**GDPR**"), the UK Data Protection Act 2018 and the UK GDPR, and any applicable national implementing laws, regulations and secondary legislation, relating to the processing of Personal Data and the privacy of electronic communications, as amended, replaced or updated from time to time, as applicable.
"Business Purposes"	means for the purposes of providing the Services and for any other purpose specifically identified in Appendix A.
"Controller"	has the meaning given in the GDPR.
"Data Subject"	means an individual who is the subject of Personal Data.
"Effective Date"	means the effective date of the Main Agreement.
"Main Agreement"	means the agreement entered between Staydia and the Partner for the provision of certain products and services by Staydia to the Partner, which may require Staydia to process Personal Data for and on behalf of the Partner.
"Partner"	has the meaning given in the Main Agreement.
"Partner Personal Data"	means Personal Data to the extent controlled by the Partner and/or processed by Staydia for and on behalf of the Partner in the provision of the Services.

"Personal Data"	has the meaning given under the GDPR.
"Personal Data Breach"	means a breach of security leading to the accidental or unlawful destruction, loss, alteration, unauthorised disclosure of, or access to, Partner Personal Data transmitted, stored or otherwise processed.
"Processing, processes and process"	means either any activity that involves the use of Personal Data or as the GDPR may otherwise define processing, processes or process. It includes any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organisation, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction. Processing also includes transferring Personal Data to third parties.
"Processor"	has the meaning given in the GDPR.
"Records"	has the meaning given in clause 12.1.
"Services"	has the meaning given in the Main Agreement.
"Standard Contractual Clauses" or "SCCs"	means the European Commission's Standard Contractual Clauses for the transfer of Personal Data from the European Union to processors in a Third County as set out in the Annex to Commission Decision 2021/914/EU.
"Staydia"	has the meaning given in the recitals.
"Term"	has the meaning given in clause 10.1.
"Third Country"	means all states that are not members of the European Economic Area or which have not been recognised by the European Commission as providing an adequate level of protection for Personal Data.

1.2 This Addendum is subject to the terms of the Main Agreement and is incorporated into the Main Agreement. Interpretations and defined terms set forth in the Main Agreement apply to the interpretation of this Addendum.

1.3 The Annexes form part of this Addendum and will have effect as if set out in full in the body of this Addendum. Any reference to this Addendum includes the Annexes.

1.4 A reference to writing or written includes email.

1.5 In the case of conflict or ambiguity between:

(a) any provision contained in the body of this Addendum and any provision contained in the Annexes, the provision in the body of this Addendum will prevail;

(b) the terms of any accompanying invoice or other documents annexed to this Addendum and any provision contained in the Annexes, the provision contained in the Annexes will prevail; and

(c) any of the provisions of this Addendum and the provisions of the Main Agreement, the provisions of this Addendum will prevail (to the extent the conflict or ambiguity relates to the Partner Personal Data).

2. ROLES AND LEGAL COMPLIANCE

2.1 Each party will comply with their respective obligations related to the processing of Personal Data under Applicable Data Protection Legislation.

2.2 To the extent Staydia processes Personal Data for and on behalf of the Partner, Staydia and the Partner acknowledge that, for the purpose of the Applicable Data Protection Legislation, Staydia is a Processor (or sub-Processor) (as applicable) of the Partner Personal Data and the Partner is a Controller or Processor (as applicable) of the Partner Personal Data.

2.3 The Partner retains control of the Partner Personal Data and remains responsible for its compliance obligations under the Applicable Data Protection Legislation, including providing any required notices and obtaining any required consents, and for the processing instructions it gives to Staydia.

2.4 If the Partner is a Processor of Partner Personal Data, it warrants on an ongoing basis to Staydia that the relevant Controller has authorised the processing of the Partner Personal Data for the Business Purposes and the engagement of Staydia as a sub-Processor, and that the instructions provided under or in relation to this Addendum comply in all respects with the instructions of the relevant Controller of the Partner Personal Data.

2.5 Appendix A describes the subject matter, duration, nature and purpose of processing and the Partner Personal Data categories and Data Subject types in respect of which Staydia may process to fulfil the Business Purposes of the Main Agreement.

3. STAYDIA OBLIGATIONS

3.1 Staydia will only process the Partner Personal Data to the extent, and in such a manner, as is necessary for the Business Purposes in accordance with the Partner's instructions. Staydia will not process the Partner Personal Data for any other purpose or in a way that does not comply with this Addendum or Applicable Data Protection Legislation.

3.2 Staydia will notify the Partner if, in its opinion the Partner's instruction would not comply with the Applicable Data Protection Legislation, unless such notice is prohibited by applicable law.

3.3 Staydia will comply with any Partner request or instruction requiring Staydia to amend, transfer, delete or otherwise process the Partner Personal Data, or to stop, mitigate or remedy any unauthorised processing.

3.4 Staydia will maintain the confidentiality of all Partner Personal Data and will not disclose Partner Personal Data to third parties unless the Partner or this Addendum specifically authorises the disclosure, or as required by law. If a law, court, regulator or supervisory authority requires Staydia to process or disclose Partner Personal Data, Staydia must first inform the Partner of the legal or regulatory requirement and give the Partner an opportunity to object or challenge the requirement, unless the law prohibits such notice.

3.5 Staydia will reasonably assist the Partner with meeting the Partner's compliance obligations under the Applicable Data Protection Legislation, taking into account the

nature of Staydia's processing and the information available to Staydia, including in relation to Data Subject rights, data protection impact assessments and reporting to and consulting with supervisory authorities under the Applicable Data Protection Legislation.

3.6 Staydia will notify the Partner of any changes to Applicable Data Protection Legislation that may adversely affect Staydia's performance of the Main Agreement.

4. PERSONNEL

4.1 Staydia will ensure that all of its employees:

(a) are informed of the confidential nature of the Partner Personal Data and are bound by confidentiality obligations and use restrictions in respect of the Partner Personal Data;

(b) are aware both of Staydia's duties and their personal duties and obligations under the Applicable Data Protection Legislation and this Addendum.

5. SECURITY

5.1 Staydia shall implement appropriate technical and organisational measures against unauthorised or unlawful processing, access, disclosure, copying, modification, storage, reproduction, display or distribution of Partner Personal Data, and against accidental or unlawful loss, destruction, alteration, disclosure or damage of Partner Personal Data including, but not limited to, the security measures set out in Appendix A.

6. PERSONAL DATA BREACH

6.1 Staydia will promptly and without undue delay notify the Partner if any Partner Personal Data is lost or destroyed or becomes damaged, corrupted, or unusable.

6.2 Staydia will without undue delay notify the Partner if it becomes aware of:

(a) any accidental, unauthorised or unlawful processing of the Partner Personal Data; or

(b) any Personal Data Breach.

6.3 Where Staydia becomes aware of the incidents contemplated by clause 6.2.1 and/or clause 6.2.2 above, it shall, without undue delay, also provide the Partner with the following information:

(a) description of the nature of the incidents, including the categories and approximate number of both Data Subjects and Partner Personal Data records concerned;

(b) the likely consequences; and

(c) description of the measures taken or proposed to be taken to address (a) and/or (b), including measures to mitigate its possible adverse effects.

6.4 As soon as possible after becoming aware of any unauthorised or unlawful Partner Personal Data processing or Personal Data Breach, the parties will co-ordinate with each other to investigate the matter. Staydia will reasonably co-operate with the Partner in the Partner's handling of the matter, including:

(a) assisting with any investigation;

(b) providing the Partner with physical access to any facilities and operations affected;

(c) facilitating interviews with Staydia's employees, former employees and others involved in the matter;

(d) making available all relevant records, logs, files, data reporting and other materials required to comply with all Applicable Data Protection Legislation or as otherwise reasonably required by the Partner; and

(e) taking reasonable and prompt steps to mitigate the effects and to minimise any damage resulting from the Personal Data Breach or unlawful Partner Personal Data processing.

6.5 Staydia will not inform any third party of any Personal Data Breach without first obtaining the Partner's prior written consent, except when required to do so by law.

7. USE OF PARTNER PERSONAL DATA

7.1 The Partner acknowledges and agrees that Staydia may create, retain, use and share anonymised and aggregated Partner Personal Data generated by or for Staydia in relation to the Partner's use of the Services, for Staydia legitimate business purposes.

8. TRANSFERS OF PARTNER PERSONAL DATA

8.1 Staydia (or any subcontractor or authorised sub-processor) must not transfer to or otherwise process Partner Personal Data to a Third Country without obtaining the Partner's prior written consent. Those transfers approved by the Partner as at the date of this Addendum are set out in Appendix A.

8.2 Where such consent is granted, Staydia may only process, or permit the processing, of Partner Personal Data in a Third Country under the following conditions:

(a) Staydia participates in a valid cross-border transfer mechanism under the Applicable Data Protection Legislation, such as the SCCs and any addendum to the SCCs as may be required, so that Staydia (and, where appropriate, the Partner) can ensure that appropriate safeguards are in place to ensure an adequate level of protection with respect to the privacy rights of individuals as required by Article 46 of the GDPR; and

(b) the transfer otherwise complies with the Applicable Data Protection Legislation.

9. COMPLAINTS, DATA SUBJECT REQUESTS AND THIRD-PARTY RIGHTS

9.1 Staydia will implement such technical and organisational measures as may be appropriate, and promptly provide such information to the Partner as the Partner may reasonably require, to enable the Partner to comply with:

(a) the rights of Data Subjects under the Applicable Data Protection Legislation, including subject access rights, the rights to rectify and erase personal data, object to the processing and automated processing of Partner Personal Data, and restrict the processing of Partner Personal Data; and

(b) information or assessment notices served on the Partner by any supervisory authority under the Applicable Data Protection Legislation.

9.2 Staydia will notify the Partner without undue delay if it receives any complaint, notice, request or communication that relates directly or indirectly to the processing of the Partner Personal Data or to either party's compliance with the Applicable Data Protection Legislation and will provide such reasonable assistance as the Partner may require to respond to such complaint, notice, request or communication.

9.3 Staydia shall not disclose Partner Personal Data to any Data Subject or to a third party other than at the Partner's request or instruction, as provided for in this Addendum or as required by applicable law.

10. TERM AND TERMINATION

10.1 This Addendum will remain in full force and effect so long as the Main Agreement remains in effect ("**Term**").

10.2 Any provision of this Addendum that expressly or by implication should come into or continue in force on or after termination of the Main Agreement in order to protect Partner Personal Data will remain in full force and effect.

11. DATA RETURN AND DESTRUCTION ON TERMINATION OR EXPIRY

11.1 At the Partner's request, Staydia will give the Partner a copy of or access to all or part of the Partner's Personal Data in its possession or control in the format and on the media reasonably specified by the Partner.

11.2 On termination or expiration of the Main Agreement, Staydia will securely delete or destroy or, if directed in writing by the Partner, return and not retain, all or any Partner Personal Data related to this Addendum in its possession or control, except to the extent permitted by appliable law.

12. RECORDS

12.1 Staydia will keep detailed, accurate and up-to-date written records regarding any processing of Partner Personal Data it carries out for the Partner, including but not limited to, the access, control and security of the Partner Personal Data, approved subcontractors and affiliates, the processing purposes, categories of processing, any transfers of personal data to a third country and related safeguards, and a general description of the technical and organisational security measures referred to in clause 5.1 ("**Records**").

12.2 Staydia will ensure that the Records are sufficient to enable the Partner to verify Staydia's compliance with its obligations under this Addendum and Staydia will provide the Partner with copies of the Records upon request.

13. AUDIT

13.1 During the Term, Staydia will permit the Partner and its third-party representatives to audit Staydia's compliance with its obligations under this Addendum on at least 21 days' prior written notice. Staydia will give the Partner and its third-party representatives all reasonable assistance in relation to the conduct of such audit.

14. NOTICE

14.1 Any notice or other communication given to a party under or in connection with this Addendum must be in writing and delivered to:

For Staydia: info@staydiasports.com.

For Partner: To the email address stipulated in the Main Agreement or otherwise notified by the Partner to Staydia from time to time.

14.2 Clause 14.1 does not apply to the service of any proceedings or other documents in any legal action or, where applicable, any arbitration or other method of dispute resolution.

15. MISCELLANEOUS

All other provisions, including the applicable liability and limitation of liability provisions and governing law, as agreed under the Main Agreement shall apply.

APPENDIX A
Personal Data Processing Purposes and Details

Subject matter of Processing:	Staydia's provision of the Services to the Partner.
Duration of Processing:	For the duration of the Main Agreement (unless otherwise required by applicable law).
Nature of Processing and Business Purpose:	For the provision of the Services in accordance with the Main Agreement.
Personal Data Categories:	Partner Personal Data, which may include: Identity data, including name, address, gender, age, date of birth, position, email address, telephone number, online identifiers, Internet Protocol address and/or account name.
Data Subject Types:	Partner's authorised users, employees, customers and clients, which may include Viewers and participating Club Members.
Approved Sub-Processors:	Stripe Payments Europe Limited (EU) / Stripe, Inc. (USA) (Global payment processing platform) SAS Nova Media (France) (Hosting services)
Staydia technical and organisational measures:	Staydia implements security measures to protect against any unauthorized access, modification, disclosure or destruction of the information it holds. These measures include the following: ○ Encryption of data to ensure confidentiality; and ○ Internal audits on the collection, storage and processing of data, including physical security measures, to prevent unauthorized access to our databases.